

REMARKS

This paper is in response to the Non-Final Office Action mailed August 11, 2017 (the “Office Action”). The foregoing section “AMENDMENTS TO THE CLAIMS” defines the status of each claim.

Applicants respectfully request reconsideration of the application in view of the above amendments to the claims and the following remarks. For Examiner’s convenience and reference, Applicants present remarks in the order that the Office Action raises the corresponding issues.

In connection with the prosecution of this case and any related cases, Applicants have, and/or may, discuss various aspects of the disclosure of the cited references as those references are then understood by Applicants. Because such discussion could reflect an incomplete or incorrect understanding of one or more of the references, the position of Applicants with respect to a reference is not necessarily fixed or irrevocable. Applicants thus hereby reserve the right, both during and after prosecution of this case, to modify the views expressed with regard to any reference.

Please note that Applicants do not intend the following remarks to be an exhaustive enumeration of the distinctions between any cited references and the claims. Rather, Applicants present the distinctions below solely by way of example to illustrate some of the differences between the claims and the cited references. Finally, Applicants request that Examiner carefully review any references discussed below to ensure that Applicants’ understanding and discussion of any reference is consistent with Examiner’s understanding.

Unless otherwise explicitly stated, the term “Applicants” is used herein generically and may refer to a single inventor, a set of inventors, an appropriate assignee, or any other entity or person with authority to prosecute this application.

Rejections Under 35 U.S.C. § 102

The Office Action rejects claims 1-4 and 6-10 under 35 U.S.C. § 102(b) over Mudaliar (“Avarai Nei” from Athmarakshaamirtham, Pub: Ilakkana Achagam, Chennai (1897), pp. 536-537. Retrieved from: TKDL on 9/8/2016). According to MPEP § 2131, a claim is anticipated under 35 U.S.C. § 102(a), (b), or (e) “only if each and every element as set forth in the claim is found, either expressly or inherently described, in a single prior art reference.” The reference must show the identical invention in as complete detail as is contained in the claim. Finally, the elements must be arranged or combined as required by the claim.

Applicants do not necessarily agree with Examiner’s statements regarding at least (1) whether Mudaliar discloses each and every element recited in the claims, (2) whether Mudaliar teaches the combination presented in the claims, and (3) whether Mudaliar discloses or inherently includes the features that the Office Action asserts that Mudaliar includes. Nevertheless, in the interest of expediting prosecution, Applicants have herein amended independent claim 1 to recite “the extract is derived from leaves of a palm tree species and wherein the palm tree species is selected from a group consisting of *Elaeis guineensis*, *Elaeis oleifera*, and *Phoenix dactylifera* or a combination thereof.” Mudaliar fails to teach this subject matter.

Claim 1 has been amended by including features of claims 2 and 3 into claim 1. Further, the Cocos nucifera is not included in the group of Palmae family. The phrase “group consisting of” is used to indicate the Palmae family. The basis for this amendment can be found on page 7, lines 25-27 and page 8, lines 8 to 16 of the PCT specification. Claims 2, 3, 10 and 11 have been cancelled.

The Examiner has mentioned that the present claims 1 – 4 and 6 – 10 are rejected for lacking novelty step in view of Mudaliar (U*). In order to overcome the Examiner’s objection, Applicant with respect provides herein a brief description of the present invention and the arguments.

The present invention discloses a composition with anti-diabetic property comprising an extract from leaves of Palmae family for diabetic management and prevention against oxidative stress, retarding diabetes related complications, retarding diabetes related organ degeneration and

effective to hinder or prevent ailments or conditions resulting from, or exacerbated by, a chronic increase in blood sugar including: tissue degeneration, cardiovascular disease, kidney dysfunction, loss of cognitive function, weight loss, visual impairment, and vasomotor symptoms. Amended independent claim 1 of the present invention discloses a method of treating a diabetic subject by providing a composition comprising a substance having an anti-diabetic property, the substance being palm leaf extract which includes biophenols, proteins, lipids, saccharides, minerals and small peptides in a pharmaceutically effective amount to treat diabetes disease. Further, the extract is derived from leaves of a palm tree species and wherein the palm tree species is selected from a group consisting of *Elaeis guineensis*, *Elaeis oleifera*, and *Phoenix dactylifera* or a combination thereof.

Applicant submits that Mudaliar discloses 31 substances as an essential feature of Mudaliar's composition. It is noticeable that, the substances are derived from different parts of plants (i.e., root bark, leaves, seed, flower bud etc.) from different plant families (i.e., *Cassia auriculata* Linn from *Facaceae* family, *Zingiber officinale roscoe* from *Zingiberaceae* family etc.) (see page 2 to 4 of the Mudaliar). Meanwhile, the present invention discloses that the composition deriving from extracts from leaves of *Palmae* family (page 7, lines 25-27 and page 8, lines 8 to 16 of the PCT specification). As such, it is clear that the composition of palm leaf extract of the present invention is different compared to the composition of Mudaliar.

Further, the fact that there are substantial differences in the active ingredients between plants from different families is known to the person skilled in the art as plants from different families may also exhibit differences in the active ingredients there among. Accordingly, the person skilled in the art cannot easily deduce the active ingredients in the leaves of *Palmae* family specifically from *Elaeis guineensis*, *Elaeis oleifera*, and *Phoenix dactylifera* as disclosed by the present invention from the active ingredients disclosed in the other parts of plants from other species as disclosed in Mudaliar.

Thus, it cannot be concluded that the ingredients in the extract of the present invention inevitably exist in the extract disclosed by Mudaliar. Therefore, even by reading the Mudaliar, the person skilled in the art still cannot easily derive to the present invention's technical solution.

In view of the above, the Applicant respectfully disagrees with the Examiner's contention that the set of claims as highlighted above are lacking novelty step in view of Mudaliar (U*). In view of the above amendments and arguments, the Examiner's objection on lack of novelty has been rendered moot and the Applicant respectfully requests the Examiner to obviate this objection.

The amendments presented herein, taken as a whole, render the rejections moot. Applicants note that portions of the claims, other than those specifically amended and/or mentioned above, may contribute to patentability. In light of the references as now understood by Applicants and the amendments made herein, the claims appear to be allowable. Applicants therefore respectfully request that Examiner withdraw the rejections under 35 U.S.C. § 102 of the claims.

Rejections under 35 U.S.C. § 103(a)

The Office Action rejects claims 1-4, 6-11 and 16-19 under 35 U.S.C. § 103(a) over Mudaliar in view of Nursing times ("The administration of medicines". Internet publication date: 2007-11-19 [Retrieved from the Internet on: 2016-09-09]. Retrieved from the Internet: <URL: <https://www.nursingtimes.net/clinical-archive/medicine-management/theadministration-of-medicines/288560.article>>). The Office Action also rejects claims 1-4, 6-11 and 16-19 under 35 U.S.C. § 103(a) over Greifenstein (DE102004018363).

Applicants do not necessarily agree with Examiner's statements regarding at least (1) whether the cited reference(s) disclose each and every element recited in the claims, (2) whether the cited reference(s) teach the combination presented in the claims, (3) whether the cited reference(s) disclose or inherently include the features that the Office Action asserts that the reference(s) include, and (4) whether the reference(s) or any other source provide a reason to combine the teachings of the reference(s). Nevertheless, in the interest of expediting prosecution, Applicants have herein amended independent claim 1 as recited above.

In view of the Examiner's objection, the Applicant with respect presents herewith the arguments. Applicants submit that Nursing times does not cure the deficiencies of Mudaliar. Thus, the claims are still allowable over the combination of Mudaliar and Nursing Times.

Applicants submit that Greifenstein discloses a medicament comprising of extracts of *Prunus armenica*, *Cocos nucifera*, *Humulus lupulus*, germinated barley/rye/wheat, mycetes, the grape juice of the common grape vine by alcoholic fermentation of extracted liquid, Musaceae and leaves of *Rubus* as active agents. Further, it teaches that the medicament is effective for treatment of acquired immune deficiency syndrome (AIDS), cancer, malignant tumors, carcinomas or sarcomas and/or disorders of the psyche or of the nervous system (see page 5, paragraph 4 of Greifenstein). Nothing in Greifenstein teaches treatment of a diabetic subject, and thereby Greifenstein in non-analogous art. Meanwhile, the present invention discloses a medicament comprises of extracts from leaves of *Palmae* family specifically from *Elaeis guineensis*, *Elaeis oleifera*, and *Phoenix dactylifera*. Further, the present invention teaches that the medicament is effective to inhibit tissue degeneration, cardiovascular disease, kidney dysfunction, loss of cognitive function, weight loss, visual impairment, and vasomotor symptoms in the diabetic subject. Thus, it is obvious that the ingredients disclosed in the present invention and Greifenstein respectively are different. Further, the use of the ingredients to treat specific disease is also varied.

Further, the fact that there are substantial differences in the active ingredients between plants from different families is known to the person skilled in the art as plants from different families may also exhibit differences in the active ingredients there among. Accordingly, the person skilled in the art cannot easily deduce the active ingredients in the leaves of *Palmae* family specifically from *Elaeis guineensis*, *Elaeis oleifera*, and *Phoenix dactylifera* as disclosed by the present invention from the active ingredients disclosed in the other parts of plants from other species as disclosed in Greifenstein.

Thus, it cannot be concluded that the ingredients in the extract of the present invention inevitably exist in the extract disclosed by Greifenstein. Therefore, even by reading Greifenstein the person skilled in the art still cannot easily derive to the present invention's technical solution. As such, it is clear that teachings of the present invention are not the same and are significantly different to the teachings of Greifenstein. In view of the above, it is apparent that the present invention is not anticipated or render obvious to the person skilled in the art in view of Greifenstein. Thus, the Applicant respectfully requests the Examiner to withdraw this objection.

The Applicant believes that the amendments presented herein, taken as a whole are within the scope of the disclosure in the initial application. Applicant notes that portions of the claims other than those specifically amended and/or mentioned above may contribute to patentability. In light of the references as now understood by Applicants and the amendments made herein, the claims appear to be allowable. Applicants therefore respectfully request that Examiner to pursue further examination based on amended claims and allow present patent application to be granted.

CONCLUSION

In view of the foregoing, Applicants submit that the pending claims are allowable. In the event that Examiner finds remaining impediment to a prompt allowance of this application that may be clarified through a telephone interview or overcome by an Examiner's Amendment, Examiner is requested to contact the undersigned attorney.

Dated this 11th day of October, 2017.

Respectfully submitted,

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AMENDMENTS TO THE CLAIMS

This listing of claims replaces all prior versions and listings of claims in the application:

1. **(Currently Amended)** A method of treating a diabetic subject, the method comprising:

- i. providing a composition ~~consisting essentially of~~ comprising of a substance having an anti-diabetic property, the substance being palm leaf extract which includes biophenols, proteins, lipids, saccharides, minerals and small peptides wherein the extract is derived from leaves of a palm tree species and wherein the palm tree species is selected from a group consisting of *Elaeis guineensis*, *Elaeis oleifera*, and *Phoenix dactylifera* or a combination thereof; and
- ii. administering the composition in a pharmaceutically effective amount to the diabetic subject to treat diabetes disease.

2.-3. **(Cancelled)**

4. **(Original)** The method as claimed in claim 1, wherein the extract is an aqueous, an aqueous alcoholic or a polar extract.

5. **(Cancelled)**

6. **(Original)** The method as claimed in claim 1, comprising administering a pharmaceutically effective amount of the palm leaf extract sufficient to reduce blood sugar in the diabetic subject.

7. **(Original)** The method as claimed in claim 1, comprising administering a pharmaceutically effective amount of the palm leaf extract sufficient to inhibit diabetic oxidative stress in the diabetic subject.
8. **(Original)** The method as claimed in claim 1, comprising administering a pharmaceutically effective amount of the palm leaf extract sufficient to inhibit diabetic complications in the diabetic subject.
9. **(Original)** The method as claimed in claim 1, comprising administering a pharmaceutically effective amount of the palm leaf extract sufficient to inhibit tissue degeneration, cardiovascular disease, kidney dysfunction, loss of cognitive function, weight loss, visual impairment, and vasomotor symptoms in the diabetic subject.

10.-15. (Cancelled)

16. **(Previously Presented)** The method as claimed in claim 1, wherein the palm leaf extract is an alcoholic extract.
17. **(Previously Presented)** The method as claimed in claim 1, wherein the palm leaf extract is an ethanol extract.
18. **(Previously Presented)** The method as claimed in claim 1, wherein the pharmaceutically effective amount is 50-200 mg/kg.

19. **(Previously Presented)** The method as claimed in claim 18, wherein the pharmaceutically effective amount is administered daily for at least 15 days.
20. **(Cancelled)**